



es
M05526Q0004

U.S. Embassy, Rabat, Morocco

*The Embassy of the United States of America
Rabat, Morocco*

May 7, 2026

Dear Prospective Quoter:

Subject: Request for Quotations number **19M05526Q0004**

Enclosed is a Request for Quotations (RFQ) for **MSG Cook/Food Services**. If you would like to submit quotation, follow the instructions in Section 3 of the solicitation, complete the required portions of the attached document, and submit the completed quotation electronically to the email address provided below.

The U.S. Government intends to award a contract to the responsible company submitting an acceptable offer at the lowest price. We intend to award a contract based on initial quotations, without holding discussions, although we may hold discussions with companies in the competitive range if there is a need to do so.

Questions are due by **May 18, 2026**, at 16:00 local time, via rabatgscontracts@state.gov

Quotations are due by **June 3, 2026** at 16:00 local time. No quotations will be accepted after this time. Quotations must be in English and incomplete quotations will not be accepted.

Your quotation must be submitted electronically to rabatgscontracts@state.gov and not exceed 30MB.

In order for a quotation to be considered, you must also complete and submit the following:

1. SF-1449
2. Section I, Pricing
3. Section 5 Representations and Certifications
4. Additional information as required in Section 3
5. The Offeror should submit a completed IRS Form W-14, found at www.irs.gov/w14, to ensure compliance with FAR 52.229-11
6. SAM Registration:

Notwithstanding FAR 4.203-1(b)(5)(ii), the Contracting Officer has determined that it is in the best interest of the U.S. Government to accept quotations from offerors that are and are not registered in the SAM (System for Award Management) database at <https://www.sam.gov>.

- Offerors with an active SAM registration need only provide their Unique Entity Identifier (UEI) number and are not required to complete the information 52.204-90 since relevant information is found in their SAM registration.
- Offerors without an active SAM registration must complete FAR 52.204-90, Offeror Identification, in Section 5, Representations and Certifications. This information must be updated annually if option years are included in the solicitation or award.

Sincerely,
Marc Hildwein
Contracting Officer

Enclosure:

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SECTION 1 - THE SCHEDULE
CONTINUATION TO SF-1449,
RFQ NUMBER **19M05526Q0004**
PRICES, BLOCK 23

1. PRICES AND PERIOD OF PERFORMANCE

The Contractor shall perform food services for the U.S. Rabat, Morocco Marine Security Guards. The price listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit. The Government will pay the Contractor the fixed price per month for services. Food is purchased separately by Mess NCO (after approval of 30-day menu) and maybe accompanied by the Contractor if needed on a weekly basis.

The performance period of this contract begins on the start date and continues for 12 months, with four (4) one-year renewal options. The initial period of performance includes any transition period authorized under the contract.

1.1 VALUE ADDED TAX

Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period. The portions of the solicitation subject to VAT are:

1.2 BASE PERIOD PRICES

CLIN 0001 BASE YEAR (Term: Twelve (12) Months) September 30, 2026-September 29, 2027		
The firm fixed price for the Base Year of the contract is:		
Price per Month	Quantity of Months	Price per Year
	12	
Total Price without VAT		
VAT at 20%		
CLIN 0001 TOTAL PRICE FOR BASE YEAR with 20% VAT = A+B		

1.3 FIRST OPTION YEAR PRICES

CLIN 1001 OPTION YEAR ONE (1) (Term: Twelve (12) Months) September 30, 2027- September 29, 2028		
The firm fixed price for option year one of the contract is:		
Price per Month	Quantity of Months	Price per Year
	12	
Total Price without VAT		
VAT at 20%		
CLIN 0001 TOTAL PRICE FOR BASE YEAR with 20% VAT = A+B		

1.4 SECOND OPTION YEAR PRICES

CLIN 2001 OPTION YEAR TWO (2) (Term: Twelve (12) Months) September 30, 2028- September 29, 2029		
The firm fixed price for option year two of the contract is:		
Price per Month	Quantity of Months	Price per Year
	12	
Total Price without VAT		
VAT at 20%		
CLIN 0001 TOTAL PRICE FOR BASE YEAR with 20% VAT = A+B		

1.5 THIRD OPTION YEAR PRICES

CLIN 3001 OPTION YEAR THREE (3) (Term: Twelve (12) Months) September 30, 2029- September 29, 2030		
The firm fixed price for option year three of the contract is:		
Price per Month	Quantity of Months	Price per Year
	12	
Total Price without VAT		
VAT at 20%		

CLIN 0001 TOTAL PRICE FOR BASE YEAR with 20% VAT = A+B	
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1.6 FOURTH OPTION YEAR PRICES

CLIN 4001 OPTION YEAR FOUR (4) (Term: Twelve (12) Months) September 30, 2030- September 29, 2031		
The firm fixed price for option year four of the contract is:		
Price per Month	Quantity of Months	Price per Year
	12	
Total Price without VAT		
VAT at 20%		
CLIN 0001 TOTAL PRICE FOR BASE YEAR with 20% VAT = A+B		

GRAND TOTAL OF BASE AND ALL OPTION YEARS	
Base Year Total CLIN 0001	
Option Year 1 Total CLIN 1001	
Option Year 2 Total CLIN 2001	
Option Year 3 Total CLIN 3001	
Option Year 4 Total CLIN 4001	
GRAND TOTAL IN MAD	

CONTINUATION TO SF-1449,
RFQ NUMBER **19M05526Q0004**
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

1. SCOPE OF WORK

The purpose of this fixed price contract is to obtain food services program for U.S. Government U.S. Mission Morocco for Marine Security Guards at the Marine Security Guard Residence (MSGR). The Contractor shall perform services in designated spaces. The contract will be for a one-year period from the date of the contract award, with 4 one-year options.

The Contractor shall furnish all managerial, administrative, and direct labor personnel that are necessary to accomplish the work in this contract. Contractor employees shall be on site only for contractual duties and not for other business purposes.

The cost of the purchase of meal ingredients is NOT included in the contract; however, the contractor *may* be required to purchase the food using supplied funding from the respective MSG Detachments. The supplemental food budget is calculated at approximately 8 per person, per month, living in the residence. This amount will be collected weekly by the respective Mess NCOs for the purpose of purchasing groceries and is in addition to the base contract. The amount of money received is in direct proportion to the number of residents in the MSG residence. The amount will be collected in Moroccan Dirhams based on the local exchange rate on the day of payment. The Contracting service/cooks will work directly with the respective Detachment Mess Non-Commissioned Officers to discuss weekly meal plans, grocery shopping, and storage requirements.

1.1 General Instructions

The Contractor shall establish and operate a food service for the purpose of providing the Marine Detachments' employees' meal preparation services for breakfast, lunch and dinner, five days a week, Monday through Friday. Before the end of each week, the Contractor must also provide 2 prepared meals for each Marine to store and consume over the weekend. The meals should be prepared on site at the respective MSGRs, with each Marine receiving approximately the same portion of food for each meal.

Meals should be prepared in accordance with a weekly menu prepared by the respective Mess NCOs.

Below is a sample of weekly menu:

Weekday	Breakfast	Lunch	Dinner
Monday	Omelets w/ Fruit	Spaghetti / meat sauce	Chicken / mixed vegetables / rice
Tuesday	Scrambled Eggs/Toast	Steak / potatoes / spinach	Meatloaf / mashed potatoes / salad
Wednesday	Breakfast Sandwich	Chicken / pasta / mixed vegetables	Salmon / rice / coleslaw
Thursday	Pancakes	Pulled chicken / beans / salad	Chicken / rice / avocado
Friday	French Toast	Chicken / salad / mash potatoes	Steak / pasta / asparagus
Saturday	Omelet / Fruit	Chicken / Rice / Vegetables	Chicken Alfredo
Sunday	Waffles / Fruit / Parfait	Streak/ Mashed Potatoes / Vegetables	Pepperoni Pizza

1.2 Duties and Responsibilities

The contractor is required to provide meal services as directed in Attachment 1 as specified in the meal plan provided by the respective Mess NCOs. Changes to the meal plan can only be made with the concurrence of the respective Mess NCOs. Occasionally, cook must be prepared to prep extra food for events like Detachment Meals. In this case, the respective Mess NCOs will give one week notification and provide extra funding for a larger style meal to be cooked.

1.3 Marine House Access

While working at the respective Residence, the contractor is allowed access to the common areas only. This is generally considered the floors containing the kitchens and the dining rooms. The contractor is not allowed access to private bedrooms of the residents. Signs are posted throughout the respective Marine House depicting off limit

areas. The contractor will be shown designated areas where they can take break periods in the respective residence.

1.4 Scheduled Work Hours

The contractor shall schedule cooking and serving requirements to ensure that these are done in the order and time frame specified and they are to be performed on a daily basis, Monday-Friday. Work hours will be from 07:00 – 17:00 daily, Monday through Friday; this shall include time to purchase meal ingredients. Work hours also include one hour break for lunch and one other 30-minute break period. The evening meals should be individually plated and stored as appropriate.

1.5 Cleaning Responsibilities of Work Areas

Contractor shall clean kitchen, all dishes and appliances after each meal. The COR shall determine the schedules presented which meet the needs of the individual facility.

1.6 Types of Services

The services shall include daily cooking and serving requirements as listed in the scope of work and in Attachment One.

2. MANAGEMENT AND SUPERVISION

2.1 Contract Supervision

The Contractor shall designate a representative who shall be responsible for on-site supervision of the Contractor's workforce at all times. This supervisor shall be the focal point for the Contractor and shall be the point of contact with U.S. Government personnel. The supervisor shall have sufficient English language skill to be able to communicate with members of the U.S. Government staff. It is possible the onsite workforce would only be one person at each respective residence. In this instance, a supervisor must be available by telephone and have the ability to respond to the respective residence within one hour.

2.2 Contract Schedule

The Contractor shall maintain schedules. The schedules shall take into consideration the hours that the staff can effectively perform their services without placing a burden on the security personnel of the Post. Schedules must also incorporate any vacations and holidays as required by Moroccan law. The Contractor shall have a sufficient number of personnel available to work onsite in the eventuality of the unavailability of the primary worker. The Contractor must provide services on holidays if they occur during the week.

The Contractor is reminded that this is a firm fixed price contract, and any overtime or holiday pay should be calculated into the bidding offer.

During Ramadan, the hours of the workday will comprise a total of six (6) hours. The actual hours of operation will be determined by each of the respective residence according to their needs, and the services provided shall remain the same.

2.3 Contract Quality Control

The Contractor shall be responsible for quality control. The Contractor shall perform inspection visits to the respective work sites on a regular basis. The Contractor shall coordinate these visits with the respective CORs. These visits shall be surprise inspections to those working on the contract.

2.4 Firm Fixed Price Contract

Contractor is reminded this is a firm fixed price contract. No request for overtime or holiday pay will be honored.

3. LOCATIONS FOR FOOD SERVICES

All services are to be delivered Monday through Friday excluding Moroccan Holidays for the respective USMC Marine Security Guard personnel in providing 3 daily meals for each Marine: breakfast, lunch, and dinner.

Location	Scheduled Hours	Escort
MSGR (Embassy Rabat)	07:00-17:00	N/A

4. PERSONNEL

4.1 General. The Contractor shall maintain discipline at the site and shall take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by Contractor employees at the site. The Contractor shall preserve peace and protect persons and property on site. The Government reserves the right to direct the Contractor to remove an employee from the worksite for failure to comply with the standards of conduct. The Contractor shall immediately replace such an employee to maintain continuity of services at no additional costs to the Government.

4.2 Standard of Conduct.

The Contractor's employees shall wear clean, neat and complete uniforms/appropriate attire when on duty. All employees shall wear attire approved by the Contracting

Officer's Representative (COR). The Contractor is responsible for providing the uniforms/appropriate attire.

4.2.3 Neglect of duties shall not be condoned. The Contractor shall enforce no sleeping while on duty, unreasonable delays or failures to carry out assigned tasks, conducting personal affairs during duty hours and refusing to render assistance or cooperate in upholding the integrity of the worksite security.

4.2.4 Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activities, which interfere with normal and efficient Government operations.

4.2.5 Intoxicants and Narcotics. The Contractor shall not allow its employees while on duty to possess, sell, consume, or be under the influence of intoxicants, drugs or substances that produce similar effects.

4.2.6. Criminal Actions. Contractor employees may be subject to criminal actions as allowed by law in certain circumstances. These include but are not limited to the following actions:

- falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records or concealment of material facts by willful omission from official documents or records;
- unauthorized use of Government property, theft, vandalism, or immoral conduct;
- unethical or improper use of official authority or credentials; security violations; or, organizing or participating in gambling in any form.

4.2.7 Key Control. The Contractor shall receive, secure, issue and account for any keys issued for access to buildings, offices, equipment, gates, etc., for the purposes of this contract. The Contractor shall not duplicate keys without the COR's approval. Where it is determined that the Contractor or its agents have duplicated a key without permission of the COR, the Contractor shall remove the individual(s) responsible from this contract. If the Contractor has lost any such keys, the Contractor shall immediately notify the COR. In either event, the Contractor shall reimburse the Government for the cost of rekeying that portion of the system.

4.3. Notice to the Government of Labor Disputes

The Contractor shall inform the COR of any actual or potential labor dispute that is delaying or threatening to delay the timely performance of this contract.

4.4. Personnel Security

4.4.1 After award of the contract, the Contractor shall provide the following list of data on each employee who will be working under the contract. The Contractor shall include a list of workers and supervisors assigned to this project. The Government will run

background checks on these individuals. It is anticipated that security checks will take **45** days to perform. For each individual the list shall include:

Full Name
Place and Date of Birth
Current Address
Identification number

The Government shall issue badges to Contractor personnel, after they are approved. Contractor personnel shall display badges on the uniform/attire at all times while providing services under this contract. These badges are the property of the US Government. The Contractor is responsible for their return at the end of the contract, when an employee leaves Contractor service, or at the request of the Government. The Government reserves the right to deny access to U.S.-owned and U.S.-operated facilities to any individual.

Employees assigned to the Marine Residence at U.S. Embassy Rabat will be provided badges that will allow them access the general areas of the U.S. Embassy Rabat compound in order to access the Marine Residence without escort.

Although there is no uniform requirement, the Contractor shall ensure all employees arrive to work in clean and appropriate clothing. Clothing should help inspire a sense of pride, authority, and comradery among employees. The food service clothing shall be commensurate with a high-quality operation and communicate a positive first impression for guests. In addition to appearance the clothing shall take into consideration employee safety (non-slick shoes to prevent slipping, long sleeve chef coat to avoid burns, aprons, etc.)

4.5 Employee Safety Requirements

Contractor shall ensure that employees are supplied with and use proper safety personal protective equipment (PPE) such as aprons and potholders. Employees are required to use Personal Protective Equipment such as face masks and gloves that will be provided by the U.S. Government while performing food preparation activities.

Contractor employees will follow signed safety work procedures, which protect the Contractor employees and DOS personnel in proximity to work site.

4.6 Key Personnel

Position and Function

The key personnel specified in this contract are essential to work performance. The only position considered in this contract is the MSG Detachment Cook or their replacement personnel as required by law.

Minimum Qualifications

The MSG Detachment Cook is the culinary lead of the program and is responsible for the development of menus, food storage, and cleanliness of the MSGR kitchen and dining areas. Contractor shall maintain a standard of service equal to our better than quality commercial food service operations found in finer restaurants, hotels, and resorts. Any replacements of the primary worker should have the same qualifications.

Clearance Level

All employees are required to pass a background security check conducted by the U.S. Government.

Substitutions

During the first 180 days of performance (after transition), the Contractor will make no substitutions of key personnel unless the substitution is required due to illness, death, or termination of employment. The Contractor will notify the Contracting Officer within 5 calendar days after the occurrence of any of these events.

Replacements

After the first 180 days of performance, the Contractor may substitute the key person if they determine that it is necessary. The Contractor will provide notice at least 45 days prior to diverting any of the specified individuals to other programs or contracts (or as soon as possible, if an individual must be replaced, for example, as a result of leaving the employ of the Contractor). The Contractor will notify the CO and shall submit comprehensive justification for the diversion or replacement request (including proposed substitutions for key personnel) to permit evaluation by the Government of the impact on performance under this contract. The proposed substitute shall possess qualifications comparable to the original key person and meet the minimum standards set forth in the contract.

Written Approval and Consent

The Contractor shall not divert or otherwise replace any key personnel without the written consent of the CO. The Government will modify the contract to reflect any changes in key personnel.

5. MATERIALS AND EQUIPMENT

After inspection of the respective kitchen facilities, the Contractor shall provide to the respective CORs and Mess NCOs a list of any items needed to successfully carry out the duties and responsibilities of this contract. These items will be provided by the U.S. Government, are considered government property, and will at all times remain onsite.

6. GOVERNMENT FURNISHED PROPERTY/EQUIPMENT

6.1 The Contractor has the option to reject any or all Government furnished property or items (see Attachment 2 - GOVERNMENT FURNISHED PROPERTY). However, if rejected, the Contractor shall provide all necessary property, equipment or items, adequate in quantity and suitable for the intended purpose, to perform all work and provide all services at no additional cost to the Government. All Government furnished property or items are provided in an "as is" condition and shall be used only in connection with performance under this contract. The Contractor is responsible for the proper care, maintenance and use of Government property in its possession or control from time of receipt until properly relieved of responsibility in accordance with the terms of the contract. The Contractor shall pay all costs for repair or replacement of Government furnished property that is damaged or destroyed due to Contractor negligence.

6.2 **Documentation of Government Property Defects or Malfunctions**

The Contractor shall maintain written records of work performed, and report the need for major repair, replacement and other work for Government property in its control.

6.3 **Inventory of Government Property**

The Contractor shall physically inventory all Government property in its possession. Physical inventories consist of sighting, tagging or marking, describing, recording, reporting and reconciling the property with written records. The Contractor shall conduct these physical inventories periodically, as directed by the COR, and at termination or completion of the contract.

7. INSURANCE

7.1 Amount of Insurance. The Contractor is required to provide whatever insurance is legally necessary. The Contractor shall, at its own expense, provide and maintain during the entire performance period the following insurance amounts:

7.2 General Liability (includes premises/operations, collapse hazard, products, completed operations, contractual, independent contractors, broad form property damage, personal injury):

1. Bodily Injury stated in U.S. Dollars:

Per Occurrence:	As per Moroccan Law
Cumulative:	As per Moroccan Law

2. Property Damage stated in U.S. Dollars:

Per Occurrence:	\$10,000.00
Cumulative	\$50,000.00

7.3 Types and Amounts of Insurance

The types and amounts of insurance are the minimums required. The Contractor shall obtain any other types of insurance required by local law or that are ordinarily or customarily obtained in the location of the work. The limit of such insurance shall be as provided by law or sufficient to meet normal and customary claims.

For those Contractor employees assigned to this contract who are either United States citizens or direct hire in the United States or its possessions, the Contractor shall provide workers' compensation insurance in accordance with FAR 52.228-3.

The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to: any property of the Contractor, its officers, agents, servants, employees, or any other person arising from an incident to the Contractor's performance of this contract. The Contractor shall hold harmless and indemnify the Government from any and all claims arising, except in the instance of gross negligence on the part of the Government.

7.4 Insurance Covering Damage and/or Theft

The Contractor shall obtain adequate insurance for damage to, or theft of, materials and equipment in insurance coverage for loose transit to the site or in storage on or off the site.

7.5 Government as Additional Insured.

The general liability policy required of the Contractor shall name "the United States of America, acting by and through the Department of State", as an additional insured with respect to operations performed under this contract.

7.6 Time for Submission of Evidence of Insurance.

The Contractor shall provide evidence of the insurance required under this contract within ten (10) calendar days after contract award. The Government may rescind or terminate the contract if the Contractor fails to timely submit insurance certificates identified above.

8. LAWS AND REGULATIONS

8.1 Compliance with Laws, Codes, Ordinances, and Regulations

Without additional expense to the Government, the Contractor shall comply with all laws, codes, ordinances, and regulations required to perform this work. In the event of a conflict among the contract and requirements of local law, the Contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution by the Contracting Officer.

The Contractor shall comply with all local labor laws, regulations, customs and practices pertaining to labor, safety, and similar matters, to the extent that such compliance is not inconsistent with the requirements of this contract.

8.2 Licenses and Permits Required

The Contractor is required to obtain any and all licenses and permits required to provide food preparation services in compliance with Moroccan law.

9. TRANSITION PLAN

Within (10) days after contract award, the Contracting Officer may request that the Contractor develop a plan for preparing the Contractor to assume all responsibilities for cook services. The plan shall establish the projected period for completion of all clearances of Contractor personnel, and the projected start date for performance of all services required under this contract. The plan shall assign priority to the selection of all supervisors to be used under the contract.

10. DELIVERABLES

The following items shall be delivered under this contract:

Description	Quantity	Delivery To	Date
General Instructions	1	COR	30 days after award
Schedules	1	COR	Weekly
List of Personnel	1	COR	10 days after award
Transition Plan	1	COR	30 days prior to start of service
Daily Headcount by Meal		COR	Available daily, due monthly along with running annual to-date totals
30-Day Menu Plan		COR	1 week prior to start of new menu cycle

Menu Adjustments		COR	2 days in advance of change
Illness Reports		COR	Provide as part of the Program Management and QA Reviews
Food Storage Catalogue	1	COR	Prior to start of Option Year, updated when new items are developed
Food Storage Catalogue proposed changes		COR	Provide proposed change to COR for review and approval prior to formalization of change
Quality Control Reports	1	COR	Monthly
KPI Reporting	1	CO	Monthly to COR to CO
Food Service Operation Uniform plan	1	CO	Within first 30 days
Health, Safety and Environment Plan	1	CO	Within first 30 days
Evidence of Insurance	1	CO	10 days after award
Licenses and Permits	1	CO	Provide as part of quotation
Reporting Plan	1	CO	Start of performance
Risk Management Plan (Risk management and mitigation-quality control & assurance, etc.)	1	CO	Provide as part of quotation response and updated/maintained throughout performance
Quality Control Plan	1	CO	Prior to Start of Performance and each Option Year

11.QUALITY CONTROL MANAGEMENT, QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

11.1 Quality Control

The Contractor, prior to implementation, shall provide for DOS approval a Quality Control plan, that will include food service performance standards, metrics, and reporting required for quality control.

This plan shall define the contractor's approach to Quality Assurance/Quality Control on the contract. It shall provide an overview of the contractor's approach to the planning, organization, direction, and control of quality-related activities associated with the delivery and performance of products and services.

Contractor shall specifically provide oversight to all food inspection activities while

working within the requirements set forth by food service standards and regulations, the DOS Regional Medical Officer (RMO) and DOS Contracting Officer's Representatives (COR) in completing the following duties:

- 11 Food Handling Procedure
- 12 Adherence to HACCP
- 13 Menu Execution and Presentation
- 14 MSGR kitchen inspections
- 15 Food Storage inspections

11.2 Food Inspection Resources

The Contractor shall provide resources to perform food procurement, food handler training, public and food facility inspections, vulnerability assessments and QA/QC monthly reports for the MSGR kitchen and dining areas. These requirements shall meet or exceed established FDA, USDA requirements. MSGR kitchens shall be inspected on a routine basis or as determined by the individual sanitation history and the potential risk associated with the number of personnel eating at a single site. The Contractor's Food Service employees shall receive periodic refresher training and a medical records review of new employees. The Contractor's food service employees shall be medically cleared prior to returning to work after receiving medical care.

11.2 Standard Operating Procedures (SOP)

The Contractor will develop MSG kitchen usage food, and water inspection SOPs and, upon COR approval of the SOPs, apply the SOPs during periodic site inspections. The contractor shall provide monthly quality control reports and perform overall trending by facility and contractor to the DOS COR. All phases of food service operations shall be evaluated against contractual requirements. Provide monthly reports on QA/QC, inspection findings and notification to DOS when follow-up action is needed, or a health hazard is identified during data analysis.

11.4 Medical Evaluation of Food Service Employees

The Contractor's employees shall conform to all appropriate health and sanitation rules, laws, and procedures as required by Moroccan law.

The Contractor's Food Service personnel who seek medical treatment must be medically cleared prior to returning to work. In the event there is a communicable disease, appropriate health recommendations shall be elevated to DOS onsite supervisors and the facility manager. The Contractor will provide a copy of annual physicals to the U.S. Government for all employees working in the respective residence.

11.5 Reporting Plan

Performance Data System

The Contractor will keep DOS informed of performance through deliverables, reports, and regular meetings with DOS representatives. The contractor shall capture and record resource changes against contract requirements to track schedules. Contractor shall also monitor resource allocation and performance data to determine whether sufficient resources are applied to required tasks, or whether reductions in work warrant corresponding reductions in staff. Analysis of labor, material, and equipment expenditures to work order and job code levels enables the COR and Program manager to track key data to verify that requirements are met to cost and schedule, and to identify and correct variances. The Contractor shall coordinate with the COR to enforce project controls at the site level. The Contractor's systems should be flexible, scalable, and adaptable to each requirement offering DOS real-time performance data upon request with minimal risk of information exposure.

Business Systems

The Contractor's business systems shall provide the support structure needed to input and track data for Quality Assurance/Quality Control (QA/QC) and performance management; personnel management; contract management; and to share deliverables and reports upon request.

The Contractor shall enhance program consistency, transparency, and accountability by maintaining detailed, Government-recognized processes and procedures for all MSG Detachment Cook duties.

These systems shall interface and feed information into a program management information system to provide near real-time reporting of performance status through a secure web-based portal/dashboard.

This portal integrates programs, systems, and plans, and consolidates recruiting information, personnel management data, time and labor tracking, cost, and performance data by scheduled value. It shall provide a reporting mechanism to produce required deliverables, personnel manning information, and employee performance report status.

The Contractor shall collaborate with DOS and identify specific needs from requirements regarding the appropriate structuring and information needed for reporting. Contractor reports are directly related to an approved invoice system and human resource management system.

During performance, Contractor shall document work progress against the schedule. The Contractor shall measure performance against planned tasks weekly and monthly and develop a series of schedule performance metrics. The Contractor shall submit reports via electronic messaging to the COR, followed by hard copies as requested.

11.6 Quality Control Plan

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Scope of Work Para	Performance Threshold
<u>Services.</u> Performs all Cook/Meal Preparation Services set forth in the scope of work.	4 through 29	All required services are performed and no more than two (2) customer complaints is received per month. All required services are 90% adherence to ServSafe quality standards

11.7 Surveillance

The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.

11.8 Standard

The performance standard is that the Government receives no more than three (3) customer complaints per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions-Commercial Items), if any of the services exceed the standard.

11.9 Procedures

- (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.
- (b) The COR will complete appropriate documentation to record the complaint.
- (c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.

- (d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
- (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
- (f) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
- (g) The COR will consider complaints as resolved unless notified otherwise by the complainant.
- (h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

ATTACHMENT 1

DESCRIPTION/SPECIFICATIONS/PERFORMANCE WORK STATEMENT

The Contractor will be responsible for being familiar with host nation laws and possess demonstrated ability for obtaining all licenses, permits and other official requirements allowing for the cooking of food items in the Marine Security Guard Residence (MSGR). When requested by the MSG Mess Non-Commissioned Officer (NCO), the Contractor may be required to accompany the Mess NCO on local food purchasing trips. The Contractor shall provide all management, supervision, administrative support, labor, logistics, training, and transportation required to conduct food service operations.

The USG requires a variety of food services operations services including, but not limited to:

- Menu Planning and Coordination
- Food Sourcing and Provisioning
- Food Preparation and Service
- Food Service Staffing
- Quality Management

The Contractor shall follow all relevant applicable industry standards, codes, Government regulations, DOS guidance and written supplier's recommendations in executing the services of this contract.

The Contractor will be responsible for being familiar with host nation laws and possess demonstrated ability for obtaining all licenses, permits and other official requirements allowing for the purchase, cooking, and transportation of food items into the Marine Security Guard Residence (MSGR).

Locations

The Contractor shall provide all Dining services for the following Marine Security Guard Residence (MSGR):

Km 5.7, Avenue Mohammed VI
Souissi, Rabat
Morocco 10170

This MSGR IS located on the U.S. Embassy Compound.

Hours of Operation:

Hours of Operation will be from Monday through Friday, from 0700-17:00 every day. These hours of operation will include one hour break for lunch, and 1 other 30-minute break.

1. General Requirements

The Contractor shall implement a DOS-approved food services support program to standardize food operations, meet mission requirements, control costs and provide good service to the MSG Detachment. The Contractor's food services approach will incorporate change management to support an evolving DOS approved business plan to meet situational changes.

2.1 Objectives

- Provide a proper skill mix, and experience of qualified personnel
- High Quality Food Operations, with minimal disruptions during transitions
- Control Cost of Food Services
- Provide effective internal controls and management oversight in support of effective organizational processes
- Demonstrate an innovative approach to food operations
- High level of customer satisfaction
- When required, assist the MSG Mess NCO in identifying high quality food for meal preparation

2.2 Code, Regulations, Guidance and Standards

FDA Food Code - www.fda.gov/foodcode

USDA Grades and Standards - <https://www.ams.usda.gov/grades-standards>

CODEX Alimentarius - <http://www.fao.org/fao-who-codexalimentarius/standards/en/>

Note: The above links are provided as a courtesy. The Government is not responsible for updating the links.

2.3 Licensing, Laws, and Regulations

The Contractor will make certain that the proper host nation licensing and approvals are in place for employee(s) to be in full compliance with the laws and regulations.

3. Specific Requirements

3.1 Quantities of Meals

The MSG detachment at US Embassy Rabat consists of 7 Marines, which would require the preparation of 21 per day: 1 meal for breakfast, 1 meal for lunch, and 1 meal for dinner for each Marine.

There may be times during the period of performance when the residence may have less, or more rarely, more, than seven Marines. During these times, the quantities of meals will be adjusted to reflect 3 daily meals for each Marine actually present.

3.2 Menu

The MSGR patrons are a diverse group: Americans who have traveled extensively and been exposed to many cultures as well as those who prefer their own regional cuisines in the U.S.; and individuals who have dietary restrictions for health, cultural or religious reasons.

Trying to please everyone all the time is labor intensive, expensive, and a near impossible task. But making the small steps will be appreciated.

The Contractor will coordinate with the respective Mess NCOs to develop a 30-day menu cycle, offering a variety of food selections for each meal and on a weekly basis, based upon acceptability ratings, availability of food items, and food preparation limitations, as well as cost of operations. The menu shall consist of a variety of quality prepared foods that meet business and industry standards, complying with the current and subsequent revisions of Dietary Guidelines for Americans (www.myplate.gov) offering menu alternatives that are low in total fat, saturated fat, cholesterol, sodium and sugar; no trans fats; lean meats; low-fat dairy products; a variety of vegetables, fruits and grain products; and vegetarian selections. The quality and appearance of the food shall be consistent with approved food service industry standards for comparable “business and industry” dining facilities.

The menu should incorporate local/regional cuisine, American and international dishes. There should be at least one healthy option with each meal. A wide selection of beverages, hot and cold and appropriate to the meal, should be available. Full use of leftovers can also extend the selection if items are stored and labeled in accordance with food safety standards.

Special meals (e.g. Mexican night, Italian supper, Asian stir-fry luncheon) are also possible introductions. A suitable selection for any identified vegetarian diners shall be on the menu daily as well.

MSGR Patrons may also source their own menu, and menu items to be prepared by the contractor separately due to dietary restrictions, health, cultural or religious reasons.

3.3 Menu Planning

The Contractor shall establish 30-day menus that reflect meals variety consistent with the varied cultural, religious, and health dietary requirements of the MSGs. Menu items shall be fresh, prepared onsite, healthy, modern and authentic to the maximum extent practicable.

Contractor shall utilize accepted cooking standards for food preparation and develop program specific standards to ensure consistency in preparation across the program.

Contractor shall develop standards or recipe cards for items determined to be customer favorites. Cooking standards and recipes shall be available to the respective CORs and included as part of program quality assurance program.

Contractor shall work with the respective Mess NCOs to identify any food allergies that any individual Marine may have. Appropriate adjustments must be made to the meals for that Marine so that he or she is not exposed to a food allergy. Contractor will work with the respective Mess NCOs to determine whether the type and severity of the allergy warrants the striking of a particular meal from the monthly rotation entirely for the entire detachment, or if it is reasonable to make the necessary adjustments to the individual Marine's meal.

Contractor shall separate meals into equally portioned plates for the Marines. Pre-cooked meals should be stored in individual containers/plates in equal portions rather than in a larger self-serve dish.

3.4 Menu Adjustments

Except in an emergency situation, for example the market is out of a required ingredient, the Contractor will submit adjustments to the menus to the COR 2 days in advance, in writing for approval.

3.5 Concept of Operations

Food is an important morale factor, as are the health priorities of a good diet. A successful food operation will be one that continuously pleases the diners; offers a wide variety of food choices; accommodates different dietary needs and desires based upon personal choice, ethnic experience and religious restrictions; is environmentally sustainable, exceeds goals, generates useful metrics and provides excellent service in all areas.

Food is a "high risk" area. It can negatively affect health, adversely affect morale, be impacted by political and economic events, and be a source for fraud, waste and abuse. The planning and resourcing that will go into this effort cannot be changed quickly. Overseas, the options are severely limited, and resources are few. The contractor shall provide an approach that measures performance and capitalizes on success while planning to mitigate such risk factors.

In order to normalize food operations, the Contractor shall have an ultimate goal of achieving a system that is: efficient; reduces waste; provides sufficient variety allowing the diner to make choices based on nutrition and variety; and is a pleasant experience overall.

The Contractor shall make use of local supplies for common and available items, local, regional, and international dishes while utilizing international sources for main entrée items, as well as favorites (USA brand items if possible). Planning for the menu should account for available provisions.

The Contractor will staff and supply meals in accordance with meal hours and meal service specified in this Contract.

3.6 Establishment of Facilities

The Contractor shall establish food service operations located within the MSGR. Offeror/Contractor shall coordinate with the COR on any additional equipment needs that are identified during the solicitation process.

Patrons may clean up after the meal by taking their dinnerware and trash to a designated site for turn-in and/or disposal. However, the Contractor is responsible for Cleanliness services at the respective MSGR kitchens and dining rooms. If the respective Marine residence takes part in a Green Initiative and has the ability to recycle plastics, glass, and or paper, the Contractor will conform to those methods of disposal.

3.7 Standards of Service

Contractor shall maintain a standard of service equal to our better than quality commercial food service operations found in finer restaurants, hotels and resorts.

3.8 Preparation

Contractor shall utilize the appropriate industry preparation standards for the all food products and menu items. Contractor shall ensure all food is not overcooked or undercooked, over seasoned or under seasoned.

3.9 Presentation

Food will not only be delicious, but well presented, readily replenished, and served at the right temperature for food safety requirements as well as patron expectations. Contractor shall use fresh ingredients to the maximum extent possible and use varying colors and arrangement that are pleasing to the eye. Serving areas, equipment, pans and serving bowls shall be clean, well-lit and free of drips and food particles. Serving utensils shall be replaced regularly throughout service to reduce cross contamination and provide a clean appearance. Meals should not be made on the basis of aesthetics, but for consumption.

3.10 Green Program and Waste Minimization

The Contractor shall utilize environmentally friendly cleaning products to the maximum extent practicable. The Contractor will demonstrate waste minimization through establishing historical usage, accurate forecasting, progressive cooking, and tracking of waste to continuously improve performance.

The Contractor will participate in “Sustainability Programs” that may include: disposable bulk purchasing program, organic food products, organic or environmentally friendly cleaning products, reusable items, marketing programs, minimizing waste stream, energy and water saving programs (equipment, food preparation, etc.) and other “green” programs that will benefit the patrons, the workers, DOS and the host nation.

Contractor shall work to reduce and replace the use of disposable dining ware through expansion of dishwashing operations to the maximum extent practical.

3.11 Customer Service

The Contractor’s food service worker(s) will be knowledgeable, provide excellent customer service, be pleasant, and achieve compliance with U.S. food worker health standards. Staff shall greet customers with a smile and appropriate greeting. Staff shall be polite and address all customers with respect. Staff shall look to assist guests to the maximum extent practical.

3.12 Food Handling and Safety

Food standards will be in accordance with the World Trade Organization recognized Codex Alimentarius. The Codex Alimentarius is an international reference point for the resolution of disputes concerning food safety and consumer protection.

3.13 General Standards – Safety

As part of the Program Management Plan, the Contractor shall establish a Food Service Safety Program. The Contractor’s Food Service workers will employ appropriate safety gear in the course of their work. The Contractor’s Safety Program shall include documented training and refresher courses for all personnel, evidence of which will be provided to the Government upon request. Language accommodation for LNs may be required. The Contractor shall investigate, and record events involving personal injury or significant damage to DOS facilities and report these events to the COR. To prevent future incidents, the Contractor will verify Safety Program reports are part of Program and Quality Assurance (QA) reviews.

4. Food Worker Health, Sanitation, and Hygiene

4.1 FDA and USDA Service Guidelines

The Contractor will follow current Food Service Sanitation and Public Health Service standards, and FDA and USDA food service guidelines, codes, and regulations. The contractor will monitor host nation evolution to World Health Organization (WHO) guidelines, including Codex Alimentarius, and incorporate WHO guidelines into its approach as appropriate.

4.2 Health and Sanitation Inspections

The Contractor will maintain and retain reports on health and sanitation inspections. Copies of these reports will be maintained at the respective Residence.

4.3 Food Service Management

The Contractor will train food service management and service staff in National Restaurant Association ServSafe food handling procedures.

4.4 Food-Handling Awareness

The Contractor will provide periodic health, sanitation, and hygiene training to address food handling awareness and sanitation processes for all employees assigned to the respective residence as part of this contract.

4.5 Fit for Duty

All Food Service workers will be physically capable, certified communicable disease-free, and attired in clean clothing.

4.6 Health Certifications

Health certifications shall be made by medical examination with exam documentation retained on file for DOS inspection. A full physical, blood test, urine test, stool test,

4.7 Cleanliness

As part of the operation of the MSGR kitchen, the Contractor shall provide cleaning services. These services shall be performed in accordance with standard commercial cleaning practices. The MSGR kitchens and dining areas require regular cleaning of all visible dust, grease, dirt, soil, scuff marks, and debris from surfaces, fixtures, tables, walls, floors and carpets due to regular traffic. Additional standard cleaning services include, but are not limited to, the following: table bussing/cleaning during food service operations, sweeping, mopping, trash removal, washing kitchen/dining windows, disinfecting, cleaning entryways and mats, and basic metal polishing.

All indoor and outdoor kitchen/cafeteria spaces will be kept clean and sanitized to the highest U.S. standards.

5. Food Service Management System and Controls

5.1 Food Service Management System

The Contractor will implement and/or maintain a Food Service Manage System for maintaining accountability and limiting access to authorized patrons. With tracking and database tools for the Contractor's program office, and storage facilities, the system will be a flexible and transparent inventory management solution. The system will enable the Contractor to monitor inventory levels, streamline purchasing, develop menus, standardize recipes, analyze data, and accurately report on a wide range of food service activities and metrics.

5.2 Fraud, Waste, and Abuse

The Contractor will have procedures, processes, and systems in place to detect and eliminate fraud, waste, and abuse.

5.3 Food Provisioning and Storage

Contractor shall provide all oversight, labor, materials, equipment, insurance and overhead to provide food provisions and storage services required to operate the respective MSGR kitchens.

- Food Quality Standards
The quality of product shall be equivalent to standards established by USDA Agriculture Marketing Service Grades and Standards (<https://www.ams.usda.gov/grades-standards>), or better.
- U.S. and Familiar Brands
Patrons are American citizens that associate certain name brand products to high quality. Local products may be submitted, with approval for "equal".
- Supply Chain Management

5.4 Best Value

Sources should be procured wherever possible to ensure highest quality and best value.

5.5 Receipt of Supplies

The Contractor may be required to accompany the Mess NCO on local food purchasing trips. These items will be received and stored in the appropriate areas withing the MSGR.

5.6 Supply Rotation

All products in storage shall be dated and rotated for first-in, first-out distribution.

Supplies required include:

- Food
Food (perishable and non-perishable).
- Beverages
Beverages to include all bottled water, milk, carbonated beverages, juices, coffee, and tea.
- Prevent Spoilage
The Contractor's Food Service Managers and Supervisors will follow USDA, HHS, and PHS published guidelines for procedures and processes to prevent spoilage. They shall consider regular inventory inspection, temperature rotations, the practice of first-in, first-out (FIFO), increased physical security for inventory, and selective or exclusive inventory access limitation.

5.7 Supplies, Utensils, Dishware and Consumables

The USG will provide sufficient supplies, utensils, dishware and consumables to support the MSGR food service operations, with sufficient inventory to maintain operation for up to 14 days without re-stock. If levels fall below those required, the contractor must notify USG within 30 days so that no lapse in supplies/consumables will occur.

- Supplies
Supplies include food supplies associated consumables (e.g. napkins, paper plates, plastic utensils, to-go boxes, etc.). Paper plates and plastic utensils will be kept for emergency use only and not used on a regular basis.
- Utensils
Utensils include metal cutlery, serving spoons, pots, pans, kitchen crockery and cooking vessels. This is considered normal stock and does not require a 14-day emergency supply.
- Dining Ware
Dining ware, to include plates, bowls, glasses, and mugs. This is considered normal stock and does not require a 14-day emergency supply.

5.8 Equipment and Facilities

The Contractor will operate fully furnished MSGR kitchens provided by the USG. The Contractor will be provided Government Furnished Equipment (GFE) that is up-to-date and fully maintained.

Contractor shall conduct a thorough assessment of all existing MSGR kitchens, and food service management equipment and ensure adequate supply of replacement equipment and parts are available for continuous operation.

Offeror shall propose an estimated list of required additional equipment to the Government for purchase within proposal, if required.

5.9 Maintenance Plan

The Embassy Operations & Maintenance contract (i.e. a separate contract) is responsible for the maintenance and repair of all MSGR kitchens (structure, electrical, plumbing, etc.) and its installed equipment (hoods, stoves, ovens, dishwashers, etc.). The Contractor will establish a plan for use, and inventory of all property, equipment, and materials used in contract performance. Procedures shall verify that property, equipment, and materials are used solely for purposes authorized in the contract. The U.S. government will provide initial instructions on how to properly use all installed equipment.

ATTACHMENT 2
GOVERNMENT FURNISHED PROPERTY

The Government shall make the following property available to the Contractor as "Government furnished property" under the contract:

The Government shall furnish all equipment and cooking items needed to prepare/cook food and will provide all the necessary plates and utensils for serving the food. If the contract needs additional items, a list should be provided to the COR.

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (DEVIATION NOV 2025)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice. (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.- (1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest. (i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall

immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87,

Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations. (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal

instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.212-5 (RESERVED)

ADD THE FOLLOWING CLAUSE IN FULL TEXT:

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUL 2025)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue.

(f) Taxes imposed under 26 U.S.C. 5000C may not be—

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES
ARE INCORPORATED BY REFERENCE:

CLAUSE	TITLE AND DATE
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (NOV 2025)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.228-4	WORKER'S COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)
52.228-5	INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
52.229-6	TAXES-FOREIGN FIXED-PRICE CONTRACTS (JUL 2025)
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2025)

CLAUSES PROVIDED IN FULL TEXT:

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(a) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years**.

(End of clause)

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR
(APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.204-90 OFFEROR IDENTIFICATION (NOV 2025)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

Definitions. As used in this provision—

(a) Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns 52.204-90 or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(a) Unique entity identifier (UEI).

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) Taxpayer identification. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: _____;

☐ TIN has been applied for; or

☐ TIN is not required because

:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____
TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table

If the Offeror is... Then...

Located in the United States or its outlying areas Submit a request to the DLA CAGE Branch via <https://cage.dla.mil>

Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization(NATO) or a sponsored nation Contact the appropriate National Codification Bureau(<https://www.nato.int/structur/ac/135/about/contacts>)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for—

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
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Immediate owner		
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Highest-level owner		
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Predecessor *		
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* Predecessor CAGE code may be marked "Unknown."

If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.204-91 CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);
- 2) Clearly identify themselves and their contractor affiliation in meetings;
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- 3) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

THE FOLLOWING DOSAR CLAUSE(S) IS/ARE PROVIDED IN FULL TEXT:

652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD
POLICY AND PROCEDURES (FEB 2015)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Policy and Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities, or information systems. The Contractor shall insert the substance of this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities, or information systems.

(b) The DOS Personal Identification Card Policy and Procedures may be accessed at <http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS
WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in an original and **Two (2)** copies to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

The Contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment.

***U.S. Embassy Rabat, Morocco
Attn: Financial Management Office
Km 5.7 Ave Mohammed VI
Souissi, Rabat 10170***

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.236-70 ADDITIONAL SAFETY MEASURES (OCT 2017)

In addition to the safety/accident prevention requirements of FAR 52.236-13, Accident Prevention Alternate I, the contractor shall comply with the following additional safety measures.

(a) *High Risk Activities.* If the project contains any of the following high risk activities, the contractor shall follow the section in the latest edition, as of the date of the solicitation, of the U.S. Army Corps of Engineers Safety and Health manual, EM 385-1-1, that corresponds to the high risk activity. Before work may proceed, the contractor must obtain approval from the COR of the written safety plan required by FAR 52.236-13, Accident Prevention Alternate I (see paragraph (f) below), containing specific hazard mitigation and control techniques.

- (1) Scaffolding;
- (2) Work at heights above 1.8 meters;
- (3) Trenching or other excavation greater than one (1) meter in depth;
- (4) Earth-moving equipment and other large vehicles;
- (5) Cranes and rigging;
- (6) Welding or cutting and other hot work;
- (7) Partial or total demolition of a structure;
- (8) Temporary wiring, use of portable electric tools, or other recognized electrical hazards. Temporary wiring and portable electric tools require the use of a ground fault circuit interrupter (GFCI) in the affected circuits; other electrical hazards may also require the use of a GFCI;
- (9) Work in confined spaces (limited exits, potential for oxygen less than 19.5 percent or combustible atmosphere, potential for solid or liquid engulfment, or other hazards considered to be immediately dangerous to life or health such as water tanks, transformer vaults, sewers, cisterns, etc.);
- (10) Hazardous materials - a material with a physical or health hazard including but not limited to, flammable, explosive, corrosive, toxic, reactive or unstable, or any operations, which creates any kind of contamination inside an occupied building such as dust from demolition activities, paints, solvents, etc.; or
- (11) Hazardous noise levels as required in EM 385-1 Section 5B or local standards if more restrictive.

(b) *Safety and Health Requirements.* The contractor and all subcontractors shall comply with the latest edition of the U.S. Army Corps of Engineers Safety and Health manual EM 385-1-1, or OSHA 29 CFR parts 1910 or 1926 if no EM 385-1-1 requirements are applicable, and the accepted contractor's written safety program.

(c) *Mishap Reporting.* The contractor is required to report **immediately** all mishaps to the COR and the contracting officer. A "mishap" is any event causing injury, disease or illness, death, material loss or property damage, or incident causing environmental contamination. The mishap reporting requirement shall include fires, explosions, hazardous materials contamination, and other similar incidents that may threaten people, property, and equipment.

(d) *Records.* The contractor shall maintain an accurate record on all mishaps incident to work performed under this contract resulting in death, traumatic injury, occupational disease, or damage to or theft of property, materials, supplies, or equipment. The contractor shall report this data in the manner prescribed by the contracting officer.

(e) *Subcontracts.* The contractor shall insert this clause, including this paragraph (e), with appropriate changes in the designation of the parties, in subcontracts.

(f) *Written program.* The plan required by paragraph (f)(1) of the clause entitled “Accident Prevention Alternate I” shall be known as the Site Safety and Health Plan (SSHP) and shall address any activities listed in paragraph (a) of this clause, or as otherwise required by the contracting officer/COR.

(1) The SSHP shall be submitted at least 10 working days prior to commencing any activity at the site.

(2) The plan must address developing activity hazard analyses (AHAs) for specific tasks. The AHAs shall define the activities being performed and identify the work sequences, the specific anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. Work shall not begin until the AHA for the work activity has been accepted by the COR and discussed with all engaged in the activity, including the Contractor, subcontractor(s), and Government on-site representatives.

(3) The names of the Competent/Qualified Person(s) required for a particular activity (for example, excavations, scaffolding, fall protection, other activities as specified by EM 385-1-1) shall be identified and included in the AHA. Proof of their competency/qualification shall be submitted to the contracting officer or COR for acceptance prior to the start of that work activity. The AHA shall be reviewed and modified as necessary to address changing site conditions, operations, or change of competent/qualified person(s).

(End of clause)

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE
LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays:

DATE	DAY(S)	HOLIDAY	REMARKS
January 1	Thursday	NEW YEAR'S DAY	AMERICAN
January 14	Wednesday	AMAZIGH NEW YEAR	MOROCCAN
January 19	Monday	MARTIN LUTHER KING'S BIRTHDAY	AMERICAN
February 16	Monday	PRESIDENTS' DAY	AMERICAN
March 20*	Friday	AID AL FITR (Celebration of end of Ramadan)	MOROCCAN
May 1	Friday	MOROCCAN LABOR DAY	MOROCCAN
May 25	Monday	MEMORIAL DAY	AMERICAN
May 27-28*	We-Th	AID AL ADHA (Feast of the Sacrifice)	MOROCCAN
June 17*	Wednesday	FIRST MOHARRAM	MOROCCAN
June 19	Friday	JUNETEENTH	AMERICAN
July 3	Friday	AMERICAN INDEPENDENCE DAY	AMERICAN
July 30	Thursday	THRONE DAY	MOROCCAN
August 21	Friday	YOUTH DAY	MOROCCAN
August 26*	Wednesday	AID MAWLID AN NABBAOUI (Birthday of the Prophet Mohammed)	MOROCCAN
September 7	Monday	AMERICAN LABOR DAY	AMERICAN
October 12	Monday	COLUMBUS DAY	AMERICAN
November 11	Wednesday	VETERANS' DAY	AMERICAN
November 18	Wednesday	INDEPENDENCE DAY	MOROCCAN
November 26	Thursday	THANKSGIVING	AMERICAN
December 25	Friday	CHRISTMAS	AMERICAN

(*) A lunar-based holiday; the actual date may vary.

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled,

and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

(1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.

(2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(d) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractors accounting policy.

(End of clause)

652.239-801- DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)

(a) Definitions. As used in this clause

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).

iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

(b) Disclosure of AI Use in Contract Performance. When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:

Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.

These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.

The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) (a) The COR for this contract will be determined at **Time of Award**.

(End of clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

- (1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
- (2) That is has obtained all necessary licenses and permits required to perform this contract; and,

- (3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.
- (b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of clause)

SECTION 3 – SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

A. Summary of instructions. Each offer must consist of the following:

A.1. A completed solicitation, in which the SF-1449 cover page (Blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out.

The offeror should submit a completed IRS Form W-14, found at www.irs.gov/w14, to ensure compliance with FAR 52.229-11

A.2. Information demonstrating the quoter's ability to perform, including:

- (1) Name of a Project Manager (or other liaison to the Embassy) who understands written and spoken English;
- (2) Evidence that the quoter operates an established business with a permanent address and telephone listing in **Morocco**. Sub-Contracting and Co-Venturing are not permitted. The contractor must submit their quotations as the Prime Contractor and remain as the sole and Prime Contractor throughout the entirety of the contract, including any and all extensions.
 - Certificate of tax compliance (Attestation de régularité fiscale des entreprises)
 - Certificate of registration for business tax (Attestation d'inscription à la taxe professionnelle):
 - Certificate of registration with the CNSS (Attestation de déclaration auprès de la Caisse National de Sécurité Sociale)
- (3) Notwithstanding FAR 4.203-1(b)(5)(ii), the Contracting Officer has determined that it is in the best interest of the U.S. Government to accept quotations from offerors that **are and are not** registered in the SAM (System for Award Management) database at <https://www.sam.gov>.
 - Offerors **with an active SAM registration** need only provide their Unique Entity Identifier (UEI) number and are not required to complete the information 52.204-90 since relevant information is found in their SAM registration.
 - Offerors **without an active SAM registration** must complete FAR 52.204-90, *Offeror Identification*, in Section 5, Representations and Certifications. This

information must be updated annually if option years are included in the solicitation or award.

- (4) List of clients over the past **three (3)** years, demonstrating prior experience with food preparation, serving and relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:
- Quality of services provided under the contract;
 - Compliance with contract terms and conditions;
 - Effectiveness of management;
 - Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
 - Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's quotation. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

- (5) Evidence that the quoter can provide qualified cooks that possess the required background and have at least one year of experience. The contractor should submit a list of cooks with their resumes;
- (6) The offeror's strategic plan for food services to include but not limited to:
- (a) A work plan taking into account all work elements in Section 1, Performance Work Statement.
 - (b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;
 - (c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and

- (d) (1) If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), **or** (2) a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISIONS ARE INCORPORATED BY REFERENCE:

<u>PROVISION</u>	<u>TITLE AND DATE</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV 2025)
52.212-1	INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION NOV 2025)
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State’s Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/LM/AQM) or a Regional Procurement Support Office, the A/LM/AQM Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of quotations, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, Christiana Foreman at +212537637568. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of the Procurement Executive (A/OPE), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 – EVALUATION FACTORS

- Award will be made to the lowest priced, acceptable, responsible offeror. The quoter shall submit a completed solicitation, including Sections 1 and 5.
- The Government reserves the right to reject proposals that are unreasonably low or high in price.
- The lowest price will be determined by multiplying the offered prices times the estimated quantities in “Prices - Continuation of SF-1449, block 23”, and arriving at a grand total, including all options.
- The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ **to include the technical information required by Section 3.**
- The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:
 - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
 - Satisfactory record of integrity and business ethics;
 - Necessary organization, experience, and skills or the ability to obtain them;
 - Necessary equipment and facilities or the ability to obtain them; and
 - Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.217-5 EVALUATION OF OPTIONS (NOV 2025)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of clause)

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2025)

(a) Definitions. As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C.395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (NOV 2025)

The Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

The Offeror represents that—

- (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
- (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months

(End of provision)

52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025)

Definitions. As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

(1) Marginalized populations of Sudan means—

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) Procedures.

(1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

- (1) A citizen or resident of the United States;
 - (2) A domestic partnership;
 - (3) A domestic corporation;
 - (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31));
- and

(5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—
- (1) It ☐ is ☐ is not a foreign person; and
 - (2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.
- (e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—
- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
 - (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.
- (f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.
- (g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:

Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,

Discriminating in the award of subcontracts on the basis of religion.